



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2680: worker's compensation; notice; fraud; commission

LIVINGSTON FLOOR AMENDMENT

1. Removes language requiring specified information be included in a certificate of insurance.
2. Requires, for any construction related workers' compensation policy with zero estimated exposure, any certificate of insurance to contain a specified statement.
3. Applies the zero estimated exposure policy requirements to zero estimated exposure policies and any related certificates of insurance, rather than to contracts, entered into or prepared on July 1, 2027.
4. Includes a conditional enactment clause.

LIVINGSTON FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2680
(Reference to COMMERCE Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
>>Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~>>Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 23, chapter 6, article 1, Arizona Revised
3 Statutes, is amended by adding section 23-911, to read:

4 23-911. Workers' compensation; proof of insurance; public
5 database; notice; definition

6 ~~[A. THE COMMISSION SHALL GENERATE AND MAINTAIN A PUBLICLY~~
7 ~~ACCESSIBLE DATABASE THAT CONTAINS AN EMPLOYER'S WORKERS' COMPENSATION~~
8 ~~INFORMATION, AND THE DATABASE MUST INCLUDE ALL OF THE FOLLOWING:~~

9 ~~1. THE NAME OF THE PERSON THAT IS INSURED.~~

10 ~~2. THE NAME OF THE INSURER.~~

11 ~~3. THE EXPIRATION DATE OF THE POLICY.~~

12 ~~B. THE COMMISSION SHALL MAINTAIN A RECORD OF THE WORKERS'~~
13 ~~COMPENSATION POLICIES SOLD BY EACH INSURANCE BROKER OR AGENT.~~

14 ~~C. AN INSURER THAT IS LICENSED OR CERTIFIED IN THIS STATE SHALL~~
15 ~~PROVIDE BOTH OF THE FOLLOWING TO THE COMMISSION:~~

1 ~~1. A COPY OF THE DECLARATION PAGE FOR EACH WORKERS' COMPENSATION~~
2 ~~POLICY FOR INCLUSION ON THE DATABASE.~~
3 ~~2. THE NAME OF THE INSURANCE BROKER OR AGENT THAT SOLD THE WORKERS'~~
4 ~~COMPENSATION POLICY.]~~
5 ~~{{[D.]} [A.]} A [declaration page] [CERTIFICATE OF INSURANCE] SHALL~~
6 ~~INCLUDE ALL OF THE FOLLOWING:~~
7 ~~1. A QUICK RESPONSE CODE THAT DIRECTS A USER TO THE [WORKERS~~
8 ~~COMPENSATION VERIFICATION] DATABASE [as prescribed in subsection A of this~~
9 ~~section].~~
10 ~~2. THE NUMBER OF EMPLOYEES THAT ARE EMPLOYED BY THE INSURED.~~
11 ~~3. THE ESTIMATED PAYROLL AMOUNT PER EMPLOYEE CLASSIFICATION.}}~~
12 ~~[E. ON NOTICE BY AN INSURER, THE COMMISSION SHALL INVESTIGATE~~
13 ~~ALLEGATIONS OF WORKERS' COMPENSATION OR PREMIUM INSURANCE FRAUD OF AN~~
14 ~~INSURED.]~~
15 ~~[F.] {{[B.]} {{[A.]}}~~ IF AN INSURER ISSUES A ZERO ESTIMATED
16 EXPOSURE POLICY, THE ZERO ESTIMATED EXPOSURE POLICY SHALL INCLUDE A
17 STATEMENT SIGNED BY THE APPLICANT THAT ATTESTS TO THE ACCURACY OF THE
18 INFORMATION PROVIDED IN THE APPLICATION AND THAT THE APPLICANT HAS NO
19 EMPLOYEES AND AN ESTIMATED EXPOSURE OF ZERO, AS FOLLOWS:
20 I ATTEST THAT THE INFORMATION PROVIDED ON THIS
21 APPLICATION IS CURRENT, TRUE, CORRECT, ACCURATE AND COMPLETE
22 TO THE BEST OF MY KNOWLEDGE AND BELIEF. I FURTHER ATTEST THAT
23 I DO NOT HAVE ANY EMPLOYEES AND AN ESTIMATED EXPOSURE OF ZERO.
24 IF I EMPLOY AN EMPLOYEE DURING THE POLICY PERIOD, I WILL
25 PROVIDE WRITTEN NOTIFICATION TO MY WORKERS' COMPENSATION
26 INSURER OF THE EMPLOYMENT WITHIN SIXTY DAYS AND WILL INCLUDE
27 THE ESTIMATED PAYROLL AND CLASSIFICATION CODES OF THE NEW
28 EMPLOYEE. I UNDERSTAND THAT AN INTENT TO DEFRAUD OR ANY
29 OMISSION OR MISREPRESENTATION CONTAINED IN THIS APPLICATION IS
30 UNLAWFUL.
31 ~~[G.] {{[C.]} {{[B.]}}~~ IF AN EMPLOYER THAT PROVIDES BUSINESS
32 CONSTRUCTION AND IMPROVEMENT SERVICES OBTAINS A ZERO ESTIMATED EXPOSURE
33 POLICY, THE EMPLOYER SHALL PROVIDE TO EACH ENTITY THAT THE EMPLOYER
34 DIRECTLY CONTRACTS WITH A COPY OF THE POLICY AND WRITTEN NOTIFICATION THAT
35 STATES THAT THE EMPLOYER HAS A TOTAL ESTIMATED EXPOSURE OF ZERO. AN
36 ENTITY THAT RECEIVES WRITTEN NOTICE UNDER THIS SUBSECTION SHALL RETAIN THE
37 NOTICE AND THE POLICY FOR AT LEAST THREE YEARS AFTER THE DATE OF RECEIPT.
38 ~~{{[C. FOR ANY CONSTRUCTION RELATED WORKERS' COMPENSATION POLICY WITH~~
39 ~~ZERO ESTIMATED EXPOSURE, ANY CERTIFICATE OF INSURANCE REQUESTED SHALL~~
40 ~~CONTAIN THE FOLLOWING STATEMENT "TO CONFIRM THE STATUS OF THE WORKERS'~~
41 ~~COMPENSATION POLICY, GO TO EWCCV.COM/CSV/".}}~~
42 ~~[H.] [D.]~~ FOR THE PURPOSES OF THIS SECTION, "ZERO ESTIMATED
43 EXPOSURE POLICY" MEANS AN INSURANCE POLICY THAT IS OBTAINED BY AN EMPLOYER
44 TO COVER THE EMPLOYER'S LIABILITY TO PAY COMPENSATION AFTER THE EMPLOYER
45 REPORTS A TOTAL ESTIMATED EXPOSURE OF ZERO.
46 Sec. 2. Applicability
47 Section 23-911, Arizona Revised Statutes, as added by this act,
48 applies to {{contracts}} {{zero estimated exposure policies and any

1 related certificates of insurance}} that are entered into {{or prepared}}
2 on or after ~~{{the effective date of this act}}~~ {{July 1, 2027}}.
3 <<Sec. 3. Conditional enactment
4 {{Section 23-911, subsection C, Arizona Revised Statutes, as added
5 by this act, does not become effective unless permission is granted by the
6 Association for Cooperative Research and Development allowing insurance
7 producers to modify the standardized form used in this state.}}>>

8 Enroll and engross to conform
9 Amend title to conform

DAVID LIVINGSTON

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